

HIGH COURT OF TRIPURA
AGARTALA

WA No.34/2020

Dr. Ajit Kumar Ray, Ex-professor, C/o Shri Manik Chandra Ray, 74/2
Joyram Apt., Near Pagla Debata Bari, Old Motor Stand. Banamali Pur,
Agartala, Tripura(W) PIN – 799001.

..... Appellant(s).

Vs.

1. The ICFAI University, through the Vice Chancellor, Kamalghat,
P.O : Kamalghat, Agartala (W), Pin – 799210.
2. The Vice Chancellor, ICFAI University, Kamalghat, P.O : Kamalghat
Agartala, Tripura (W) Pin – 799 210.
3. The Registrar, ICFAI University, P.O – Kamalghat, Agartala, Tripura
(W) Pin – 799 210.

..... Respondent(s).

For Appellant(s) : Mr. C S Sinha, Advocate.
For Respondent(s) : None.

HON'BLE THE CHIEF JUSTICE MR. AKIL KURESHI
HON'BLE JUSTICE MR. S G CHATTOPADHYAY

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28/9/2020

(Akil Kureshi, CJ).

This appeal is directed against the judgment of the learned Single
Judge dated 4th January, 2020 passed in WP(C) No.401/2018.

Petitioner was engaged as a Dean (Research and Academics) by the respondent-university under a communication dated 17th June, 2015. This was purely on contractual basis and for a fixed period. The tenure of the appointment would be up to 30th June, 2016 and upon completion of the said period, there was no further extension. However, it appears that by way of informal arrangement without any specific order of extension in writing the petitioner continued to discharge his duties in the said capacity for some time, till finally the said university sent a communication dated 12th April, 2017 informing the petitioner that the contract had expired on 30th June, 2016 and that the management has decided to relieve him from duties upon closure to office hours of 14th April, 2017. This communication the petitioner had challenged in the writ petition. The writ petition was dismissed by the impugned judgment holding that there is no merit in the petition.

It is true that in the impugned judgment the reasons recorded by the learned Single Judge are brief. Nevertheless, in facts of the present case it would not persuade us to entertain the writ appeal. Admitted position is that the petitioner was engaged in the academics on a contractual basis for a fixed period. His engagement has been terminated without any stigmatic observations or order. The petitioner did not enjoy any tenure protection

either in terms of the contract of employment or under any statutory provisions which were brought to our notice.

In the result, we do not find any error in the view of the learned Single Judge. Appeal is dismissed. Pending application(s), if any, also stand disposed of.

(S G CHATTOPADHYAY, J)

(AKIL KURESHI, CJ)



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